the corporation. Cases cited, in which the question of jurisdiction has been examined: *Bingham* v. *Cabot*, 3 Dall. 382; 5 Cranch 57; 3 Ibid. 267; 3 Wheat. 591.

The policy of the constitution, in relation to jurisdiction, is to include suits against corporations, although all who are interested are not citizens of the same state. The influence of such corporations, in the state where they exist, makes this appeal to other than state tribunals, expedient. When an action is instituted against trustees, by citizens of another state, would the jurisdiction of the courts of the United States be taken away, by showing that some of those who had a fiduciary interest, were not citizens of the same state with the trustees? The question must be settled, by adverting to the local usages of Georgia; and there suits are brought against the individuals who represent the bank.

Berrien and *Wilde*, for the defendant.—The pleadings show that there is no allegation of citizenship in the stockholders of the bank, the owners of its funds; and the point is fully settled, that all the parties who are sued shall be averred to be citizens of another state, from that of the plaintiff or complainant in the suit. A body corporate, as such, is incapable of citizenship, according to the true meaning of the law giving jurisdiction. This court has decided, that they will go behind the act of incorporation, and ascertain the character of the individual corporators, and if they find them citizens of another state, the suit may be maintained; but there must be an averment of such citizenship, as to every stockholder. 5 Cranch 57; 6 Wheat. 146.

The possession of the fund cannot give the court jurisdiction, as that was the possession of a corporation. No *jurisdiction can be obtained, *240] because of the difficulties in suits against the corporation of one state, by citizens of another; and it is denied, that any such difficulties exist in Georgia.

By the Court.—This is not a case within the jurisdiction of the courts of the United States. The record does not show, that the defendants were citizens of Georgia, nor are there any distinct allegations or averments, that the same was the fact, as to the stockholders in the bank.

This cause came on, &c.: On consideration whereof, this court is of opinion, that as the bill does not aver that the corporators of the Bank of the State of Georgia, which bank is defendant in the suit, are citizens of the state of Georgia, the circuit court has no jurisdiction of the cause, and can grant no relief. It is, therefore, ordered to be certified to the circuit court, as the opinion of this court, that, in the present state of the pleadings, it not appearing that the defendants are citizens of the state of Georgia, the complainants are not entitled to relief in that court.